



CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

A COMMUNITY OF CHOICE

MEMO

TO: Honorable Mayor Patrick Collins, City of Cheyenne
City Council Members

FROM: Rick Amen, PE, City Traffic Engineer


DATE: March 13, 2025

SUBJECT: **Cooperative Agreement between Wyoming Department of
Transportation and the City of Cheyenne
Federal Project No. B251A02
Various Locations, Thermoplastic Striping, Laramie County**

Please find attached the proposed Cooperative Agreement for Federal Project No. B251A02, Various Locations, Thermoplastic Striping in Laramie County provided by WYDOT to the City of Cheyenne for your approval and execution. The agreement is summarized below for your information.

Purpose of Project:

In conjunction with intersections planned to be restriped with thermoplastic markings by WYDOT, the city determined it would be in its best interest to upgrade the markings on the city roadways associated with the shared WYDOY/City intersections for improved consistency and a best approach to providing improved safety to the public. Markings along Lincolnway, College Drive and at the intersection of Logan & Nationway were identified to be in need of upgraded thermoplastic markings as part of this project.

Purpose of Agreement:

The primary purpose of the agreement is to set forth the terms and conditions by the City will reimburse WYDOT for costs associated with thermoplastic restriping of crosswalks and other street markings at various locations throughout the City. The locations are shown on Exhibit A, which is attached and in the agreement. This project is associated with WYDOT's main project B251010.

Responsibilities:

City of Cheyenne.

- Reimburse WYDOT in accordance with Section 4 of the agreement.
- Submit a letter to WYDOT designating a qualified Project representative, at no cost to WYDOT, capable of making timely decisions and authorized to sign documents concerning the construction of the Project.
- WYDOT will give the City the opportunity to review and comment on Project cost estimates prior to the advertisement of bids.
- WYDOT shall ask the City to concur in the award of the Project to the lowest qualified bidder. As a result of signing the Letter of Concurrence, the City agrees to amend estimated costs to match the actual bid amount.
- Upon completion and acceptance of the Project, the City shall maintain, at its sole expense, all features constructed under the Agreement. Maintenance shall include all repairs necessary to keep the improvement in its functional constructed condition.
- Identify areas of potential effect to and perform environmental studies (in compliance with 23 CFR 771) outside of the existing WYDOT Project limits. Provide this information to WYDOT prior to the due date to be provided by WYDOT.
- Approve final plans and estimates prior to advertisement by WYDOT.

WYDOT.

- Conduct preliminary engineering investigations and develop final design plans and estimates.
- Perform construction engineering for the Project in accordance with Project plans and specifications.
- Advertise the Project and award a bid to the lowest qualified bidder in accordance with WYDOT policies.
- Review environmental information provided by the City and include or re-evaluate the NEPA document as necessary.

Estimated Cost:

The Total City Portion of the project including construction administration and construction cost estimated by WYDOT in February 2025 is \$234,845.00 from the Optional One Percent Sales Tax (2023 – 2026) 5th Penny.

**COOPERATIVE AGREEMENT
BETWEEN THE
WYOMING DEPARTMENT OF TRANSPORTATION
AND THE
CITY OF CHEYENNE**

Project B251A02
Various Streets in the City of Cheyenne
Thermoplastic Striping
Laramie County

1. **Parties.** The parties to this Cooperative Agreement (Agreement) are the Wyoming Department of Transportation (WYDOT), whose address is: 5300 Bishop Boulevard, Cheyenne, Wyoming 82009, and the City of Cheyenne (City), whose address is: 2101 O'Neil Avenue, Cheyenne, Wyoming 82009.
2. **Purpose of Agreement.** The purpose of this Agreement is to set forth the terms and conditions by which the City will reimburse WYDOT for costs associated with thermoplastic restriping of crosswalks and other street markings at various locations throughout the City (Project). The locations for the Project are shown in Exhibit A, Project Locations, which is attached to and incorporated into this Agreement by this reference. This Project is associated with WYDOT's main project B251010.
3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The term of the Agreement is from the Effective Date through the completion of the Project. All services shall be completed during this term. However, the Parties agree that maintenance requirements described in Section 5(E) are indefinite.
4. **Payment.**
 - A. The City agrees to pay WYDOT the entire actual cost of the Project, including all indirect costs through the current Indirect Cost Allocation Plan (ICAP) rate as approved by the Federal Highway Administration (FHWA). Estimated costs are set forth in Exhibit B, Summary of Project Costs, which is attached to and incorporated into this Agreement by this reference. ICAP is a rate built into WYDOT's accounting system for overhead expenditures for administering a project. The ICAP rate is developed by WYDOT and approved by the FHWA, with the new rate taking effect immediately. The current rate of eleven percent (11%) is effective until September 30, 2027, at which time the rate is subject to change based on FHWA approval. The ICAP rate will be charged on total direct costs on the Project, as shown in Exhibit B.
 - B. The costs shown in Exhibit B are estimates only and the City understands that it must reimburse WYDOT for all final actual costs, which may be higher or lower.

- C. The City hereby agrees to reimburse WYDOT for its share of actual costs incurred to the Project, less previous payments, within forty-five (45) days after billing pursuant to Wyo. Stat. § 16-6-602. WYDOT will bill the City on a monthly basis unless otherwise agreed upon between the parties.

5. Responsibilities of City. City agrees to:

- A. Reimburse WYDOT in accordance with Section 4 above.
- B. Submit a letter to WYDOT designating a qualified Project representative, at no cost to WYDOT, capable of making timely decisions and authorized to sign documents concerning the construction of the Project.
- C. WYDOT will give the City the opportunity to review and comment on Project cost estimates prior to the advertisement of bids.
- D. WYDOT shall ask the City to concur in the award of the Project to the lowest qualified bidder. As a result of signing the Letter of Concurrence, the City agrees to amend estimated costs to match the actual bid amount.
- E. Upon completion and acceptance of the Project, the City shall maintain, at its sole expense, all features constructed under this Agreement. Maintenance shall include all repairs necessary to keep the improvement in its functional constructed condition.
- F. Identify areas of potential effect to and perform any environmental studies (in compliance with 23 CFR 771) outside of the existing WYDOT Project limits. Provide this information to WYDOT prior to the due date to be provided by WYDOT.

6. Responsibilities of WYDOT. WYDOT agrees to:

- A. Conduct preliminary survey work, engineering investigations, National Environmental Policy Act (NEPA) Compliance with 23 CFR 771, and right-of-way studies and shall develop final design plans and estimates in accordance with the American Association of State Highway and Transportation Officials (AASHTO)'s *A Policy on Geometric Design of Highways and Streets, 2018*.
- B. Perform construction engineering for the Project in accordance with Project plans and specifications.
- C. Advertise the Project and award a bid to the lowest qualified bidder in accordance with WYDOT policies.
- D. Review environmental information provided by the City and include or re-evaluate the NEPA document as necessary.

7. **General Provisions.**

- A. **Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement.
- B. **Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms “hereof,” “hereunder,” “herein,” and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. **Assignment Prohibited and Agreement Shall Not be Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. The City shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.
- D. **Audit and Access to Records.** WYDOT and its representatives shall have access to any books, documents, papers, electronic data, and records of the City which are pertinent to this Agreement.
- E. **Award of Related Agreements.** WYDOT may award supplemental or successor agreements for work related to this Agreement or may award agreements to other contractors for work related to this Agreement. The City shall cooperate fully with other contractors and WYDOT in all such cases.
- F. **Compliance with Laws.** The City shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this Agreement.
- G. **Confidentiality of Information.** Except when disclosure is required by the Wyoming Public Records Act or court order, all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the City in the performance of this Agreement shall be kept confidential by the City unless written permission is granted by WYDOT for its release. If and when the City receives a request for information subject to this Agreement, the City shall notify WYDOT within ten (10) days of such request and shall not release such information to a third party unless directed to do so by WYDOT.
- H. **Entirety of Agreement.** This Agreement, consisting of eight (8) pages; Exhibit A, Project Locations, consisting of one (1) page; and Exhibit B, Summary of Project Costs, consisting of one (1) page, represent the entire and integrated

Agreement between the parties and shall supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.

- I. Ethics.** The City shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing Contractor's profession.
- J. Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein. Any extension of this Agreement shall be initiated by WYDOT and shall be accomplished through a written amendment between the parties entered into before the expiration of the original Agreement or any valid amendment thereto, and shall be effective only after it is reduced to writing and executed by all parties to the Agreement.
- K. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.
- L. Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- M. Independent Contractor.** The City shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, the City shall be free from control or direction over the details of the performance of services under this Agreement. The City shall assume sole responsibility for any debts or liabilities that may be incurred by the City in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the City or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or WYDOT or to incur any obligation of any kind on behalf of the State of Wyoming or WYDOT. The City agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance or

similar benefits available to State of Wyoming employees will inure to the benefit of the City or the City's agents or employees as a result of this Agreement.

- N. **Nondiscrimination.** The City shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement.
- O. **Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided under this Agreement.
- P. **Ownership and Return of Documents and Information.** WYDOT is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the City in the performance of this Agreement. Upon termination of services, for any reason, the City agrees to return all such original and derivative information and documents to WYDOT in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers.
- Q. **Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed, and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or her designee, if required by Wyo. Stat. § 9-2-3204(b)(iv).
- R. **Insurance Requirements.** The City is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, and certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool or the Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, *et seq.*, and shall provide a letter verifying its participation in the WARM or LGLP to WYDOT.
- S. **Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by or for the City, shall identify WYDOT as the sponsoring agency and shall not be released without prior written approval from WYDOT.
- T. **Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full

force and effect, and the parties may renegotiate the terms affected by the severance.

- U. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and WYDOT expressly reserve sovereign immunity by entering into this Agreement and the City expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereign or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- V. Taxes.** The City shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.
- W. Termination of Agreement.** This Agreement may be terminated, without cause, by WYDOT upon thirty (30) day's written notice. This Agreement may be terminated by WYDOT immediately for cause if the City fails to perform in accordance with the terms of this Agreement.
- X. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- Y. Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- Z. Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.
- AA. Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- BB. Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by the City of an originally signed counterpart of this Agreement by facsimile or PDF

shall be followed up immediately by delivery of the originally signed counterpart to WYDOT.

THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK.

8. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

ATTEST:

Caitlin Casner, Secretary
Transportation Commission of Wyoming



ATTEST:

Signature

Print Name

Title

Date

WYDOT:

Wyoming Department
of Transportation

Keith R. Fulton, P.E., Chief Engineer

Date

CITY:

City of Cheyenne

Signature

Print Name

Title

Date

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

 #246565

Madison Barber, Assistant Attorney General

02.24.25

Date

Exhibit A, Project Locations

Description	Reference Marker	Pavement Type	Thermoplastic Pavement Markings							
			Crosswalk Line with Contrast	Left Turn Arrow with Contrast	Right Turn Arrow with Contrast	Straight Arrow with Contrast	Comb Arrow Left with Contrast	Comb Arrow Right with Contrast	Comb Arrow Left/Right with Contrast	Stop Line 24 Feet White
			24 Feet White							
			Square Feet							
W LINCOLNWAY & AMES AVE	361.54	CONCRETE		102	102	-	-	-	-	-
W LINCOLNWAY & SNYDER AVE	361.66	CONCRETE		51 (A)	-	-	-	-	-	-
W LINCOLNWAY & PIONEER AVE	362.09	CONCRETE		51, 51 (A)	51, 51 (A)	31, 31 (A)	-	-	-	-
W LINCOLNWAY & CAREY AVE	362.17	CONCRETE		-	-	31	96	96	-	-
W LINCOLNWAY & CAPITOL AVE	362.23	CONCRETE		102	102	-	-	-	-	-
E LINCOLNWAY & EVANS AVE	362.50	CONCRETE		51 (A)	-	-	-	96 (A)	-	-
E LINCOLNWAY & NATIONWAY	363.20	CONCRETE		102 (A)	-	-	-	-	160 (A)	-
LOGAN AVE & NATIONWAY	N/A	CONCRETE	636 (53 BARS)	357, 51 (A)	255, 51 (A)	-	-	-	-	-
E LINCOLNWAY & CONVERSE AVE	363.66	ASPHALT		51 (A)	-	-	-	192 (A)	-	-
E LINCOLNWAY & HENDERSON DR	364.34	ASPHALT	-	51 (A)	-	-	-	96 (A)	-	-
E LINCOLNWAY & RIDGE RD	364.78	ASPHALT		153 (A)	102 (A)	-	-	-	-	-
E LINCOLNWAY & E PERSHING BLVD	365.63	ASPHALT		204 (A)	-	-	-	-	-	-
COLLEGE DR & DELL RANGE BLVD	8.15	CONCRETE		153, 51 (A)	51 (A)	-	-	-	-	-
COLLEGE DR & E PERSHING BLVD	7.15	CONCRETE		204	-	-	-	-	-	-
S COLLEGE DR & TOM BAUMAN DR	4.28	ASPHALT	-	51 (A)	51 (A)	-	-	-	-	30 (A)
E COLLEGE DR & LARAMIE COUNTY COMMUNITY COLLEGE (LCCC) EAST ENTRANCE	4.01	ASPHALT	-	51 (A)	51 (A)	-	-	-	-	22 (A)
E COLLEGE DR & SWEET GRASS DR (LCCC ENTRANCE)	3.80	ASPHALT	-	51 (A)	51 (A)	-	-	-	-	21 (A)
E COLLEGE DR & GOOD NIGHT TRL (LCCC ENTRANCE)	3.59	ASPHALT	-	51 (A)	51 (A)	-	-	-	-	21 (A)

Notes:

1. (A) designates asphalt pavement
2. Quantities shown do not include black contrast border
3. All locations to be verified with City of Cheyenne traffic engineer prior to installations.

EXHIBIT B

Summary of Project Costs

Project B251A02
Various Streets in the City of Cheyenne
Thermoplastic Striping
Laramie County

January 29, 2025

Estimated Project Costs:

<u>Item</u>		<u>Cost</u>
Estimated Construction Costs	=	\$ 176,310.00
Preliminary Engineering (10%)	=	\$ 17,631.00
Construction Engineering (10%)	=	\$ 17,631.00
Total Direct Costs (TDC)	=	\$ 211,572.00
Indirect Cost Allocation Plan (ICAP) (11% of TDC)	=	\$ 23,273.00
Total Project Costs	=	\$ 234,845.00

NOTE: All costs shown are rounded to the nearest even dollar.

The above figures are for estimating purposes only and are subject to revision throughout the life of this Project.

Construction Engineering includes Project closeout costs.